



POLICE DEPARTMENT

August 27, 2015

MEMORANDUM FOR: Police Commissioner

Re: Detective Peter Valentin
Tax Registry No. 929577
Manhattan Court Section
Disciplinary Case No. 2015-13030

The above-named member of the Department appeared before me on July 28, 2015, charged with the following:

1. Said Detective Peter Valentin, on or about July 26, 2013, at approximately 0838 hours while assigned to the NARCBBX and on duty in the vicinity of 1110 east 165th Street, Bronx County, did wrongfully use force against Person A, in that he struck him in the face.

P.G. 203-11, Page 1, Paragraph 2 - USE OF FORCE

The Civilian Complaint Review Board (CCRB) was represented by Raasheja Page, Esq., Respondent was represented by James Moschella, Esq.

Respondent through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The CCRB's Case

CCRB called Investigator Caitlin Schwartz as a witness.

The Respondent's Case

Respondent testified on his own behalf.

FINDINGS AND ANALYSIS

On July 26, 2013, Respondent, who was assigned to Narcotics Borough Bronx, was conducting observations in the vicinity of 1110 East 165th Street in the Bronx. It is undisputed that at approximately 8:38 AM, he arrested Person A and charged him with criminal possession of a controlled substance. During the course of the arrest, Person A sustained an injury in the area of his eye. The mugshot photo taken on the day of the arrest shows discoloration in the area under Person A's left eye. (CCRB Ex. 4). The issue in this case is whether that injury was caused by the wrongful use of force against Person A by Respondent.

Person A did not appear to testify in this hearing. CCRB represented that they had made attempts to find Person A but were unable to do so. Testimony revealed that Person A had prior convictions for larceny and multiple convictions for criminal possession of a controlled substance in the 7th degree, a misdemeanor. (Tr. 30). CCRB introduced a transcript and audiotape of Person A's CCRB interview. (CCRB Exs. 1A-1B). They also called a CCRB investigator, Caitlin Schwartz, to testify but she had never

personally spoken to Person A or to someone by the name of Person B, who CCRB characterized as an independent witness who spoke to CCRB by phone. (Tr. 24, 28).

In Person A's hearsay statement to CCRB, taken two months after the incident in question in September 2013, he denies possessing any controlled substances at the time of the incident. He states that as he left a store and was eating a piece of bread, he "fist pump tap[ped]" an individual he didn't personally know and, within 30 seconds, the Respondent jumped out of a van and approached him. Person A stated that the Respondent asked him questions for approximately a minute about what he did with the other guy, and then, without any provocation on Person A's part, Respondent punched him "real hard" one time in his left eye and then grabbed him in a chokehold for two minutes. (CCRB Ex. 1A at 36, 40-41, 48, 52, 66, 68). Respondent was not charged for the claimed chokehold. (Tr. 25-26).

In Respondent's account of what happened, he testified he knew from his experience, having worked for eight years in the Bronx Narcotics Unit, that drug sales had previously occurred in the area of 1110 E. 165th Street. (Tr. 35, 37-38). He also testified that on this particular day, he saw Person A exchange money for a small object that Respondent believed, based on his experience, was a controlled substance. (Tr. 38-39). After seeing this occur, he approached Person A and directed him, "Police, don't move. Stop right there." He then saw Person A move the packet towards his mouth. (Tr. 40-41). Respondent testified that, "When I observed him making the motion I ran up to him and attempted to smack the object from his hand and, unfortunately, I knocked the object off his hand about (sic) I also struck Person A in the face." (Tr. 40). He does not know which part of his hand made contact with Person A's face, but he knows he made

contact. (Tr. 43). Person A was still moving while he was placing the object near his mouth. (Tr. 44). The object was close to Person A's mouth when Respondent attempted to smack it. (Tr. 40). Respondent indicated that the combination of him running at Person A and Person A still moving while putting the object near his mouth caused his hand to somehow hit near Person A's eye area. (Tr. 47).

Respondent testified he tried to smack the object from Person A's hand for two reasons; 1) to recover the evidence to the crime he had observed, and 2) to prevent Person A from harming himself by ingesting drugs. (Tr. 42). Respondent testified he never intended to make contact with Person A's face. (Tr. 43). His intention was to, "knock off the object from his hand before he attempted to swallow it." (Tr. 40). Respondent further testified that the object was recovered near Person A's feet and was field tested and determined to be crack cocaine. (Tr. 41-42).

Respondent took Person A to the hospital after he arrested him and acknowledged he had a swollen eye at that time that Respondent had not observed prior to their interaction. (Tr. 45-46). The individual with whom Respondent had seen Person A make the exchange, Person C was arrested for criminal sale of a controlled substance. (Tr. 44). Additional crack cocaine was recovered from Person C's person.

I credit Respondent's account of what occurred. He was a credible witness. He testified in a forthright manner on both direct and cross-examination. I also find that Person A's hearsay statement, which must be subjected to close scrutiny as it was neither given under oath nor subjected to the test of cross-examination, is not believable on its own, and is not corroborated by any other evidence in the case.

Person A's statement itself is marked by assertions that do not make sense. Initially, it seems unlikely that Person A would just fist pump (sic) someone he didn't personally know. It is much more plausible that the connection of hands was, as described by Respondent, a hand to hand exchange of a controlled substance, which was in fact recovered in this case. More importantly, Person A's account that he was just standing in the street eating some bread when the Respondent jumped out of a van, asked him questions, and then within a minute, with no provocation, punched him "real hard" in the eye lacks credibility in this case.

This tribunal also finds no support for Person A's account in the telephone interview with the supposed eyewitness, Person B. CCRB investigator Schwartz, who did not even speak to this person on the phone, acknowledged that there was absolutely no verification that the person on the phone was who he claimed he was. Additionally, as Person A was in fact the person who gave CCRB the phone number of this person, it could have been any of his friends or acquaintances who were calling on his behalf and, thus, not an unbiased observer. Therefore, I have given no weight to this hearsay.

Finally, a review of the medical records (CCRB Ex. 3) shows that CT scans were done of Person A's head and his facial bones. The scans indicated that there were no evidence of acute fractures, but rather "soft tissue swelling overlaying the left maxilla and in the periorbital region." Person A was prescribed acetaminophen and referred for a pain reassessment. If Respondent had indeed punched Person A in the eye "real hard," it might be expected that the medical records would indicate a more severe injury to the eye area. However, as Respondent, has not denied that his hand made contact with Person A's face, the medical evidence is entirely consistent with Respondent's credible

account. Person A could have sustained the soft tissue swelling and the discoloration around his eye from an accidental contact made by Respondent.

In this case, CCRB has failed to meet its burden of proof. I find that Respondent did not intentionally use force against Person A. He merely accidentally made contact with Person A's face when attempting to secure the controlled substance. As the CCRB has not proven by a preponderance of the evidence that Respondent wrongfully used force against Person A, I find the Respondent Not Guilty.

Respectfully submitted,

Handwritten signature of Nancy R. Ryan in black ink, with the initials "RM" written to the right.

Nancy R. Ryan
Assistant Deputy Commissioner - Trials

APPROVED

SEP 22 2018
Handwritten signature of William J. Bratton in black ink, written over a circular stamp.
WILLIAM J. BRATTON
POLICE COMMISSIONER